

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOWN QUARK SYSTEMS, LLC AND SUNNYSIDE DIGITAL,
INC., *Complainants*

v.

ZIM AMERICAN INTEGRATED SHIPPING SERVICES CO., LLC;
ZIM INTEGRATED SHIPPING SERVICES, LTD.; AND PORT OF
HOUSTON AUTHORITY OF HARRIS COUNTY, TEXAS,
Respondents.

DOCKET NO. 26-07

Served: June 11, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER GRANTING CONSENT MOTION FOR ENLARGEMENT OF TIME TO ANSWER

On June 10, 2026, Respondents Zim American Integrated Shipping Services Co., LLC and Zim Integrated Shipping Services, Ltd. filed a consent motion seeking a 14-day extension of time to answer the complaint. Dkt. 6. Commission Rule 102 permits an enlargement of time upon a showing of good cause. A motion seeking an enlargement of time must be filed at least seven days prior to current deadline. 46 C.F.R. § 502.102(a). In support of their motion, the Zim Respondents cite the length of the complaint (65 pages encompassing nine alleged Shipping Act violations) and ongoing work on related proceedings including two cases in federal court and a charge complaint before the Commission. Resp. Consent Mot. 1.

The motion is timely and complies with Commission Rule 71(a), which requires parties to confer prior to filing non-dispositive motions. 46 C.F.R. § 502.71(a). I find that the length and complexity of the complaint is good cause for the requested extension. But I caution the parties that settlement discussions, which the Zim Respondents also cite in support of the motion, while encouraged, will not ordinarily constitute good cause for an extension.

The Zim Respondents requested a 14-day extension from June 19, 2026 to July 3, 2026. It seems they may have miscalculated the due date for filing an answer. Answers are due 25 days after service of the complaint by the Commission. 46 C.F.R. § 502.62(b)(1). The docket indicates that the Secretary served the complaint on May 26, 2026; 25 days later would be June 20, 2026, a Saturday, making the due date for the answer Monday, June 22, 2026. See 46 C.F.R. § 502.101 (if the last day of the time period falls on a Saturday, Sunday, or Federal holiday, the time period continues to the next day that is not a Saturday, Sunday, or Federal holiday). Even if June 19, 2026 was 25 days later, it is a Federal holiday, as is Friday, July 3, 2026, and so the same rule would operate to move the due date to the following Monday.

Accordingly, the motion is **GRANTED**; the Zim Respondents must respond to the complaint no later than **Monday, July 6, 2026**.

ALEX
CHINTELLA



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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge